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We trace the emergence of Digital Rights Management (DRM) and how it has affected various forms of intellectual property historically

Intellectual property has always been a highly disputed area of law since quite a long time. From the point of view of a creator or designer, they do have the right to have a say in how their creation is utilised, due to the effort they have put into it. From the same point of view, they also believe that they deserve a share in any commercial gains made through their creation - directly or indirectly. On the other hand, if sharing and altering a creative idea or a concept can lead to the creation of something new and better, is it really fair to restrict the same?

In the technology age, everything from Digital Artwork to Music is created and marketed digitally. And to cover the ownership rights of the creator, there is the concept of Digital Rights Management, or DRM. Digital Rights Management technology refers to the tools that allow restrictions to be placed on copyrighted media and software applications to control their usage, (re)distribution and alterations. Now, there are arguments throughout history that fight for justifying this control and then there are arguments trying to convey that this entire concept is harmful to everybody as a whole.

The Early days

One of the most significant and earliest cases that can be put forward as a significant precedent regarding legal control over intellectual property is the invention of FM radio. One of the most significant problems in early day Amplitude Modulated (AM) radio broadcasts was static interference from external sources like electrical equipment and thunderstorms. Many inventors had tried in vain to find a way to overcome this limitation. Edwin Howard Armstrong was working for the Radio Corporation of America (RCA) when he formulated a method to successfully overcome AM